

Liechtenstein 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Liechtenstein during the year.

There were no credible reports of significant human rights abuses.

The government had mechanisms in place to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution and law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

The law prohibited public insults, including via electronic means, directed against an individual's race, language, ethnicity, religion, world view, sex, disability, age, and sexual orientation, with a possible prison sentence of up to two years. The law also prohibited the disparagement of religious teachings. Anyone who publicly disparaged a person or a thing that was the object of worship of a church or religious society established within the country or a religious doctrine, custom, or institution of such a church or a legally permissible institution in a manner that "is likely to give rise to justifiable annoyance" was liable to imprisonment not exceeding six months or a heavy fine.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the rights of all workers to form and join independent unions of their choice and to bargain collectively. The law provided for freedom of assembly but was silent on the right to strike. The law neither prohibited antiunion discrimination nor required reinstatement of workers fired for union activity.

The government adequately enforced applicable laws, and the government and employers respected freedom of association and collective bargaining in practice. Penalties in the form of fines were commensurate with those for similar crimes, and inspection was sufficient to enforce compliance. Penalties were regularly applied against violators.

Forced or Compulsory Labor

The law prohibited all forms of forced or compulsory labor. The government effectively enforced the law. Penalties for those found guilty were greater than those for analogous crimes, such as kidnapping.

There were no confirmed reports during the year that traffickers exploited domestic or foreign victims in the country or that traffickers exploited nationals as victims abroad.

Acceptable Work Conditions

Wage and Hour Laws

The law did not provide for a national minimum wage, but minimum wages were set annually in a wage and protocol agreement. Minimum wages exceeded the poverty level. The Liechtenstein Workers Association, a labor union, negotiated voluntary collective bargaining agreements with the Chamber of Commerce on a sector-by-sector basis.

The law set the maximum workweek at 45 hours for professional workers, employees of industrial firms, and sales personnel and 48 hours for other workers. Separate provisions applied to children. Overtime could not exceed an average workweek of 48 hours over a period of four consecutive months. Some exceptions to overtime limits were authorized, for example, in the area of medical treatment.

In 2020 the Liechtenstein Institute published a study on employment relationships in the private home-care sector, where work was often performed by migrant women. The study made no allegations of compulsory labor but noted that employment relationships in home care were subject to the Labor Protection Act, the General Civil Code, and the standard employment contract for domestic workers but not the Labor Law.

Occupational Safety and Health

The law set occupational safety and health (OSH) standards that were appropriate for the main industries in the country. Labor standards also covered the thousands of workers who commuted daily from neighboring countries. There were additional safeguards for youths, pregnant and breastfeeding women, and employees with children. OSH experts proactively identified unsafe conditions and workers could remove themselves from situations that endangered health or safety without jeopardy to their employment.

Infra noted the working conditions of domestic workers and nurses employed in private homes were not subject to inspections or official labor contracts, as they were legally self-employed.

Wage, Hour, and OSH Enforcement

The Office of Labor Inspection, a part of the Office of Economic Affairs, effectively enforced minimum wage, overtime, and OSH laws. Penalties for violations were commensurate with those for similar crimes and penalties were regularly applied against violators, though there were no reports of such actions in the year. The agency had a sufficient number of labor inspectors, who were authorized to make unannounced inspections and levy sanctions, to enforce the law effectively. Data regarding the size and enforcement of labor laws in the informal sector was unavailable.

c. Disappearance and Abduction

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/international-religious-freedom-reports/>.

e. Trafficking in Persons

There were no confirmed reports during the year that traffickers exploited domestic or foreign victims in the country or that traffickers exploited nationals as victims abroad. Three cases of trafficking filed in previous years were still in the legal system.

Police maintained an online tool targeted at trafficking victims and others who suspected a crime was committed, which enabled anonymous reporting.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

The law prohibited all the worst forms of child labor and set the minimum age for employment at 16, with exceptions for limited employment of children from age 14 to 16. Children from age 14 to 16 could engage in certain categories of light work, but those of compulsory school age (through age 15) could work no more than nine hours per week during the school year and 35 hours per week during school vacations. Children younger than 15 could be employed for the purposes of cultural, artistic, athletic, and advertising events. Working hours for youths from age 15 to 18 were not to exceed 40 hours a week. The law prohibited children younger than 17 from working overtime and prohibited children through age 18 from engaging in night work or Sunday shifts. The law stipulated that an employer was required to consider the health of children and provide

them a proper moral environment within the workplace. The law also stipulated that employers could not overexert children and that employers were required to protect the child from “negative influences” within the workplace.

The Office for Worker Safety of the Department of National Economy effectively enforced child labor laws and devoted adequate resources and oversight to child labor policies. Legal penalties were commensurate with those for similar crimes, and inspections by trained inspectors were adequate to enforce compliance.

There were no confirmed reports of the worst forms of child labor.

Child Marriage

The legal minimum age of marriage was 18, and this was effectively enforced by the government.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. The law allowed asylum seekers under deportation orders to be granted an appeal hearing if requested within five days after the decision. The law permitted persons from safe countries of origin who were ruled to be ineligible for asylum to be processed for denial of asylum within a maximum of seven days. The Liechtenstein Human Rights Association expressed concern that the law did not contain hardship provisions for family reunification, especially for children. There were no reports of family separations among asylum seekers or refugees.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish community consisted of approximately 25 individuals. There were no reports of antisemitic incidents.